

Regulation 102-R(1): Equal Educational Opportunity - Grievance Procedure

Status: DRAFT - 2nd Reading

Original Adopted Date: 09/01/2020 | **Last Revised Date:** 06/10/2025 | **Last Reviewed Date:** 06/10/2025

It is the policy of the Dallas Center-Grimes Community School District does not to discriminate in its educational programs, activities and employment practices on the basis of race, color, national origin, sex, disability, religion, creed, sexual orientation, age (for employment), actual or potential parental, family, or marital status (for programs), sexual orientation, and socioeconomic status (for programs) in its educational programs and its employment practices. There is a grievance procedure for processing complaints of discrimination. If you have questions or a grievance related to this policy or for more information about the district's grievance procedures please contact Greg Carenza, 2405 W 1st St. PO Box 680, Grimes, Iowa 50111, telephone: 515-992-3866, email: greg.carenza@dcschools.com

Students, parents of students, employees, and applicants for employment in the school district have the right to file a formal complaint alleging discrimination. The district has policies and procedures in place to identify and investigate complaints alleging discrimination. If appropriate, the district will take steps to prevent the recurrence of discrimination and to correct its discriminatory effects on the Complainant and others.

A Complainant may attempt to resolve the problem informally by discussing the matter with a building principal or a direct supervisor. However, the Complainant has the right to end the informal process at any time and pursue the formal grievance procedures outlined below. Use of the informal or formal grievance procedure is not a prerequisite to the pursuit of other remedies. Please note that informal processes and procedures are not to be used in certain circumstances (e.g., sexual harassment and sexual assault).

Filing a Complaint A Complainant who wishes to avail himself/herself of this grievance procedure may do so by filing a complaint with the Associate Superintendent (herein after "equity coordinator" equity coordinator(s)). An alternate will be designated in the event it is claimed that the equity coordinator(s) or superintendent committed the alleged discrimination or some other conflict of interest exists. Complaints shall be filed within 30 days of the event giving rise to the complaint or from the date the Complainant could reasonably become aware of such occurrence. The Complainant will state the nature of the complaint and the remedy requested. The equity coordinator(s) shall assist the Complainant as needed.

Investigation Within fifteen (15) working days, the equity coordinator will begin the investigation of the complaint or appoint a qualified person to undertake the investigation (hereinafter "equity coordinator"). If the Complainant is under 18 years of age, the equity coordinator shall notify his or her parent(s)/guardian(s) that they may attend investigatory meetings in which the Complainant is involved. The complaint and identity of the Complainant, Respondent, or witnesses will only be disclosed as reasonably necessary in connection with the investigation or as required by law or policy. The investigation may include, but is not limited to the following:

- A request for the Complainant to provide a written statement regarding the nature of the complaint;
- A request for the individual named in the complaint to provide a written statement;
- A request for witnesses identified during the course of the investigation to provide a written statement;
- Interviews of the Complainant, Respondent, or witnesses;
- An opportunity to present witnesses or other relevant information; and
- Review and collection of documentation or information deemed relevant to the investigation.

Within 60 working days, the equity coordinator shall complete the investigation and issue a report with respect to the findings.

The equity coordinator shall notify the Complainant and Respondent of the decision within 5 working days of completing the written report. Notification shall be by U.S. mail, first class.

Decision and Appeal The complaint is closed after the equity coordinator has issued the report, unless within 10 working days after receiving the decision, either party appeals the decision to the superintendent by making a written request detailing why he/she believes the decision should be reconsidered. The equity coordinator shall promptly forward all materials relative to the complaint and appeal to the superintendent. Within 30 working days, the superintendent shall affirm, reverse, amend the decision, or direct the equity coordinator to gather additional information. The superintendent shall notify the Complainant, Respondent, and the equity coordinator of the decision within 5 working days of the decision. Notification shall be by U.S. mail, first class.

Appeal to Board If the grievant is not satisfied with the superintendent's decision, the grievant can file an appeal with

the board within five working days of the decision. It is within the discretion of the board to determine whether it will hear the appeal.

The decision of the superintendent shall be final.

The decision of the superintendent in no way prejudices a party from seeking redress through state or federal agencies as provided by in law.

This policy and procedures are to be used for complaints of discrimination, in lieu of any other general complaint policies or procedures that may be available.

If any of the stated timeframes cannot be met by the district, the district will notify the parties and pursue completion as promptly as possible.

Retaliation against any person, because the person has filed a complaint or assisted or participated in an investigation, is prohibited. Persons found to have engaged in retaliation shall be subject to discipline by appropriate measures.

C.F.R. - Code of Federal Regulations

34 C.F.R. 106

Description

[Education - Nondiscrimination Based on Sex](#)

34 C.F.R. Pt. 100

[Education - Nondiscrimination for Programs](#)

34 C.F.R. Pt. 104

[Education - Nondiscrimination on Basis of Handicap](#)

I.A.C. Iowa Administrative Code

281 I.A.C. 12

Description

[General Accreditation Standards](#)

I.C. Iowa Code

Iowa Code § 216.6

Description

[Unfair Employment Practices](#)

Iowa Code § 216.9

[Unfair/Discriminatory Practices](#)

Iowa Code § 256.11

[DE - Educational Standards](#)

Iowa Code § 280.3

[Education Program - Attendance Center Requirements](#)

U.S.C - United States Code

20 U.S.C. §§ 1221

Description

[Education - FERPA - General Provisions](#)

20 U.S.C. §§ 1681

[Education - Sex](#)

20 U.S.C. §§ 1701

[Education - EEO](#)

29 U.S.C. § 206

[Labor - Minimum Wage](#)

29 U.S.C. §§ 794

[Labor - Vocation Rehab Rights](#)

42 U.S.C. § 12101

[Public Health - Equal Opportunity - Disabilities](#)

42 U.S.C. § 2000d

[Public Health - Civil Rights - Federally Programs](#)

42 U.S.C. § 2000e

[Public Health - EEO Civil Rights - Definitions](#)

Cross References

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Description

[Educational Philosophy](#)

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[Anti-Bullying/Harassment](#)

104-R(1)

[Anti-Bullying/Harassment - Investigation Procedures](#)

104-E(1)

[Anti-Bullying/Harassment - Bully/Harassment Incident Report](#)

104-E(2)

[Anti-Bullying/Harassment - Witness Disclosure Form](#)

104-E(3)

[Anti-Bullying/Harassment - Disposition of Complaint Form](#)

Cross References**Description**

401.01	Equal Employment Opportunity/Affirmation Action
502.03	Student Expression and Student Publications Code
502.03-R(1)	Student Expression and Student Publications Code
506.01	Student Records Access
506.01-R(1)	Student Records Access
506.01-E(1)	Student Records Access - Request of Nonparent Examination or Copies of Education Records
506.01-E(2)	Student Records Access - Authorization for Release of Education Records
506.01-E(3)	Student Records Access - Request for Hearing on Correction of Records
506.01-E(4)	Student Records Access - Request for Examination of Records
506.01-E(5)	Student Records Access - Notification of Transfer of Records
506.01-E(6)	Student Records Access - Receipt of Subpoena
506.01-E(7)	Student Records Access - Juvenile Justice Agency Information Sharing Agreement
506.01-E(8)	Student Records Access - Annual Notice
603.01	Basic Instruction Program
603.04	Multicultural/Gender Fair Education
603.04-R(1)	Multicultural/Gender Fair Education
802.05	Buildings & Sites Adaptation for Persons with Disabilities